

26AVUD00514 26AVUD00514

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-27

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Case Number: 26AVUD00514 Hearing Date: August 27, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

NURY RODRIGUEZ,

Plaintiff,

v.

JOCELYN CEBREROS; CRISTIAN MARENCO; DOES through 10,

Defendants.

Case Number 26AVUD00514

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 27, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is an unlawful detainer case. Defendants Jocelyn Cebreros (Cebreros) and Cristian Marengo (Marengo) move the Court to quash service of summons.

On April 30, 2026, Plaintiff Nury Rodriguez (Rodriguez) filed a complaint against Defendants for unlawful detainer, alleging that Defendants are in possession of the premises owned by Plaintiff and located at 43489 30th Street West, Unit 2, Lancaster, CA 93536 (the Property).

On May 20, 2026, Defendants filed a motion to quash service of summons.

On May 27, 2026, Plaintiff filed two proofs of personal service of summons as to Defendants and proof of service of summons by substituted service on all unnamed occupants of the Property.

On May 27, 2026, default was entered against both Defendants.

On May 28, 2026, the Court vacated the entry of default as to both Defendants.

On June 11, 2026, Defendants filed notice that the motion to quash was taken off calendar.

That same date, Defendants refiled a motion to quash service of summons on the grounds that the unlawful detainer complaint failed to state facts sufficient to constitute a cause of action.

On July 7, 2026, Honorable Commissioner Michelle Lim called the motion for hearing, at which Defendants did not appear, and denied the motion to quash.

On July 10, 2026, Defendants filed a notice of filing and automatic prevention of default, stating that Defendants had filed a petition for writ of mandate in the appellate department on the grounds that the trial court's July 7, 2026 ruling on the motion to quash was heard by a commissioner when Defendants did not stipulate to a commissioner and expressly included a non-stipulation in their motion.

On July 24, 2026, on receipt of the writ, the Court issued a Minute Order delineating its inclination to vacate the July 7, 2026 order denying the motion to quash and transferring the matter to a superior court judge for consideration.

On July 29, 2026, the Court vacated the July 7, 2026 Order and transferred the action to Department A-14.

On August 11, 2026, the motion to quash was called for hearing and denied.

On August 19, 2026, Defendants filed their demurrer, set for hearing on August 27, 2026.

No opposition has been filed.

II. Legal Standard

Standard for Demurrer – A party against whom a complaint has been filed may object by demurrer to the pleading on the ground that the pleading does not state facts sufficient to constitute a cause of action. (Cal. Code Civ. Proc., § 430.10, subd. (e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations reasonably, liberally, and in context. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) Courts must “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Blank, supra, 39 Cal.3d at 318.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) The threshold for meeting this burden is low, and “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Some California courts have held that “[a] motion to quash service is the only method by which the defendant can test whether the complaint states a cause of action for unlawful detainer.” (Delta Imps. v. Municipal Court (1983) 146 Cal.App.3d 1033, 1036.) However, others have disagreed, holding that a “tenant may not challenge the allegedly defective service of the three-day notice via a motion to quash service of summons because the three-day notice is an element of an unlawful detainer action.” (Borsuk v. Appellate Division of Superior Court (2015) 242 Cal.App.4th 607, 610.)

III. Discussion

Application – Defendants demurrer to Plaintiff’s complaint on the grounds that it fails to state facts sufficient to constitute a cause of action and request that Plaintiff take nothing in this action and that Defendants be awarded their attorney’s fees and costs incurred. (Demurrer, p. 1:19-2:4.) Specifically, Defendants argue Plaintiff has failed to state when the lease was entered into between the parties and failed to identify a written agreement to terminate the lease for owner-occupancy of the Property.

Defendants already raised the same arguments in their prior motion to quash service of summons, which was denied by the Court. Defendants’ motion to quash the service of summons did not contend that service was improper, but rather, that the complaint failed to state facts sufficient to constitute a cause of action because Plaintiff did not allege or prove the existence of a written agreement. The same argument is raised in the present demurrer.

Defendants’ reliance on *Vargas v. Municipal Court for Riverside Judicial Dist.* (1978) 22 Cal.3d 902 is misguided. In *Vargas*, the Court did not affirm the court’s sustaining of the demurrer, but mentioned in passing that the trial court so ruled. (Id. at 907.) The Court noted that the deficiency in the complaint was that the plaintiff’s complaint failed to plead one of the five statutory bases for unlawful detainer pursuant to Code of Civil Procedure section 1161 in initiating an action following termination of an employment relationship. (Ibid, n. 1 [“Section 1161, subdivision 1, provides in relevant part: ‘A tenant of real property, for a term less than life . . . is guilty of unlawful detainer: 1. When he continues in possession . . . of the property . . . after the expiration of the term for which it is let to him; provided [that] . . . where the person to be removed becomes the occupant of the premises as a . . . employee . . . the relation of . . . employer and employee . . . has been lawfully terminated.”].)

In *De La Vara v. Municipal Court* (1979) 98 Cal.App.3d 638, 641, also relied on by Defendants, the Court stated "unlawful detainer is a statutory action (Code Civ. Proc., § 1161 et seq.) and the requirements for a complaint are expressly set forth in the statute (Code Civ. Proc., § 1166)," and held that in an action by a landlord against a tenant, the phrase "must set forth the facts on which he seeks to recover" in Section 1166 "means the facts constituting one of the five types of unlawful detainer specified in C.C.P. 1161, and the statute clearly indicates the matters which must be pleaded and proved." (Id. at 642.)

Code of Civil Procedure section 1161, subdivision (1) states that a tenant is guilty of unlawful detainer when he or she continues in possession of the property after the expiration of the term for which it is let to the tenant and the expiration is of a nondefault nature. Plaintiff's complaint states "Plaintiff demands possession from each defendant because of expiration of a fixed-term lease." (Compl., ¶ 12.) Thus, pursuant to *De La Vara*, the complaint sufficiently states facts constituting the unlawful detainer action, being one of the five types of unlawful detainer specified in Section 1161.

As the Court stated in its order denying Defendants' motion to quash:

California Code of Civil Procedure section 1166, subdivision (a) sets forth the pleading requirements of an unlawful detainer complaint. Section 1166(a) states, in relevant part: "The complaint shall: (1) be verified and include the typed or printed name of the person verifying the complaint. (2) Set forth the facts on which the plaintiff seeks to recover. (3) Describe the premises with reasonable certainty... (5) State specifically the method used to is serve the defendant with the notice or notices of termination upon which the complaint based. This requirement may be satisfied by using and completing all items relating to service of the notice or noticed in an appropriate Judicial Council form complaint, or by attaching a proof of service of the notice...of termination served on the defendant."

Here, the Court finds that Plaintiff's complaint states facts sufficient to constitute a cause of action for unlawful detainer. Plaintiff's complaint (1) is verified and includes the printed name of Plaintiff who is verifying the complaint, (2) sets forth the facts on which Plaintiff seeks to recover, being that Defendants are in possession of her Property, received notice to vacate the premises for non-fault just cause, and that Plaintiff intended to move in and occupy the Property for a period of at least 12 months, (3) describes the Property with reasonable certainty, and (4) states with certainty the method used to serve Defendants with notice of termination upon which the complaint is based and attached a copy of said notice and proof of service. Plaintiff also complied with the notice requirements of Civil Code section 1946.2. No more is needed at the pleading stage.

(Order After Hearing, 8/11/26, p. 4-5.)

The Court also notes that the relief requested in the demurrer is improper. Defendants are not entitled to judgment on a demurrer, nor are they entitled to attorney's fees as self-represented litigants.

Accordingly, Defendants' demurrer is OVERRULED.

IV. Conclusion

Defendants Jocelyn Cebreros and Cristian Marengo's Demurrer is OVERRULED.